

CRIME/DRUG FREE ADDENDUM

In consideration of the execution or renewal of a lease of the premises at the following address _____, Owner and Resident agree as follows:

1. Resident any other member of Resident's household or guest, or other person under Resident's control, shall not engage in criminal activity, including drug-related criminal activity, on or near the said premises. "Drug-related activity" means the illegal manufacture sale, distribution, use, or possession with the intent to manufacture, sell, distribute, or use a controlled substance.
2. Resident, any member of Resident's household or a guest, or other person under Resident's control, shall not engage in any act intended to facilitate criminal activity, including drug-related criminal activity on or near the said premises.
3. Resident or members of the household will not permit the dwelling unit to be used for or to facilitate criminal activity, including drug-related criminal activity, regardless of whether the individual engaging in such activity is a member of the household or a guest.
4. Resident, any member of Resident's household or a guest, or another person under Resident's control, shall not engage in the unlawful manufacturing selling, using, storing, keeping, or giving of a controlled substance at any location, whether on or near the dwelling unit, premises, or otherwise.
5. Resident, any member of Resident's household, or a guest or another person under Resident's control, shall not engage in any illegal activity, including prostitution, criminal street gang activity, threatening or intimidating, battery, including but not limited to the unlawful discharge of firearms on or near the dwelling unit premises, or any breach of the lease agreement that jeopardizes the health, safety, and welfare of the landlord, his agent, or other tenants, or involving imminent or actual serious property damage.
6. **Violation of the above provisions shall be a material and irreparable violation of the lease and good cause for termination of tenancy.** A single violation of any provision of the added addendum shall be deemed a serious violation and a material and irreparable noncompliance. It is understood that a single violation shall be good cause for immediate termination of the lease. Unless otherwise provided by law, proof of violation shall not require criminal conviction, but shall be by a preponderance of the evidence.
7. In case of conflict between provisions of this addendum and other provisions of the lease, the provisions of the addendum shall govern.
8. This LEASE ADDENDUM is incorporated into the lease executed or renewed this day between Owner and Resident(s).

Resident's Signature: _____ Date: _____

Resident's Signature: _____ Date: _____

Owner/Manager's Signature: _____ Date: _____

SMOKE-FREE ADDENDUM

Date: _____

To: _____

Re: _____

City _____ State _____ Zip _____

Due to the increased possibility of smoke related damage to the property, beyond normal wear and tear due to smoking, and the increased risk of fire, **smoking is prohibited in and around any area of the home or apartment** located at the above address. This “no smoking” policy applies to all residents and guests.

For clarity of this agreement, the term **No Smoking** means not inhaling, exhaling, burning, nor carrying any lighted cigar, cigarette or other tobacco product (or any other “lighted” item or substance) in any manner or in any form.

Resident acknowledges that this no smoking policy and Smoke Free Addendum is made part of the lease or month-to-month agreement and agrees that he or she will not smoke in any room or area of the property, nor around the outer perimeter of the premises. In addition, Resident further understands that he or she will be responsible for enforcing this policy with all relatives and guests who visit the premises. If Resident fails to abide by this policy, he or she understands that Resident’s tenancy may be subject to immediate termination.

Receipt of Copy Acknowledged: Residents hereby acknowledge that they have read and understand that this addendum is incorporated into and made part of the lease. Residents understand it, agree to it, and have been given a copy.

Resident’s Signature _____ Date _____

Resident’s Signature _____ Date _____

Owner/Management’s Signature _____ Date _____